

Jaiveer Singh v. State of U.P.

Allahabad High Court · Division Bench · 30 March 2017 · Writ-C No. 13478 of 2017 · **Writ disposed; clause 6.5 authority to decide billing dispute**

HEADNOTE

Consumers with a sanctioned 5 H.P. load challenged bills raised as for 10 H.P. The High Court declined to decide that disputed question of fact in writ and relegated the billing dispute to the competent authority under paragraph 6.5 of the Electricity Supply Code, 2005, directing consideration in accordance with law preferably within two months.

FACTUAL SUMMARY

Jaiveer Singh and Om Prakash held a sanctioned 5 H.P. electric connection. They approached the High Court complaining that bills were being raised on the formula applicable to a 10 H.P. connection. Dakshinanchal Vidyut Vitran Nigam contended that energy consumed on the spot corresponded to 10 H.P. and that the bills were in order. Counsel informed the Court that the petitioners had already represented the dispute of bills and arrears before the competent authority.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-forum

HOLDING

A challenge to bills raised on a 10 H.P. formula against a sanctioned 5 H.P. load is a disputed question of fact which the High Court will not decide in writ. Under the Electricity Act, 2003 read with the Electricity Supply Code, 2005, paragraph 6.5 is the remedial forum for settling a billing dispute. The writ is not entertained; the competent authority already seized of the representation on bills and arrears is directed to look into the grievance in accordance with law, preferably within two months of production of a certified copy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Consumers with a sanctioned 5 H.P. load challenged bills raised as for 10 H.P. The High Court declined to decide that disputed question of fact in writ and relegated the billing dispute to the competent authority under paragraph 6.5 of the Electricity Supply Code, 2005 ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER BILLS WERE CORRECTLY RAISED ON 10 H.P. AGAINST A SANCTIONED 5 H.P. LOAD

Left to the competent authority under clause 6.5; writ court declined to decide disputed facts. ¶ 1